

TELECOMMUNICATIONS AND CONNECTIVITY SERVICES AGREEMENT

Contract ID: VTL-TEL-2024-1015

This Telecommunications and Connectivity Services Agreement (this “Agreement”), effective as of October 15, 2024 (the “Effective Date”), is entered into by and between **Veritel Communications, Inc.**, with offices at 1100 Peachtree Street NE, Suite 900, Atlanta, GA 30309 (“Veritel”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Customer”). Veritel and Customer are each a “party” and together the “parties.”

1. SERVICES

- 1.1 Veritel provides business internet (1 Gbps dedicated fiber), a hosted VoIP phone system for 160 extensions, and SD-WAN management for Customer’s office.
- 1.2 Service installation and number porting were completed at activation.

2. TERM, RENEWAL, AND NOTICE

- 2.1 **Initial Term.** Twenty-four (24) months from the Effective Date, ending **October 14, 2026**.
- 2.2 **Automatic Renewal.** Upon expiry, service **renews automatically** for successive twelve-month terms unless cancelled. Renewal date: **October 15, 2026**.
- 2.3 **Cancellation Notice.** Customer must provide written notice of non-renewal **at least sixty (60) days** before the renewal date (by **August 16, 2026**). Early termination during a term incurs the remaining-term charges.

3. CHARGES

- 3.1 Recurring monthly charges total **USD \$3,000 (USD \$36,000 per year)**, invoiced monthly, **net 30**. Usage-based long-distance and overage charges are billed as incurred.
- 3.2 **Renewal Price Change.** Veritel may adjust recurring charges for any Renewal Term. Veritel will state the new monthly charge in the renewal notice; any increase will not exceed **eight percent (8%)** over the prior term’s recurring charge.

4. DATA HANDLING

- 4.1 Veritel processes call-detail records and limited account information necessary to deliver and bill the services. Veritel does not act as a processor of Customer’s marketing or end-customer personal data, and **no Data Processing Addendum is in effect**. Veritel maintains carrier-standard confidentiality of communications as required by law.

5. SERVICE LEVELS

99.9% network availability for the dedicated circuit; credits per the SLA are the sole remedy.

6. LIABILITY

Liability for service interruptions is limited to applicable service credits. Aggregate liability otherwise capped at the charges paid in the prior twelve months.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Georgia, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 Entire Agreement; Amendment.** This Agreement, together with its Schedules and any renewal notice, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Veritel Communications, Inc.

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: E. Castellano

Name: K. Brandt

Title: Business Sales

Title: IT Manager

Date: October 15, 2024

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